

February 11, 2021



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16035
(SIXTH REVISION)

EXPIRATION DATE: 2025-01-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: LCF Systems, Inc.
Scottsdale, AZ
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of compressed nitrogen in non-DOT specification cylinders for export only in order to support Military operations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301a, 173.302a, and 173.304a in that non-DOT specification cylinders are not authorized, except as provided herein.

February 11, 2021

5. BASIS: This special permit is based on the application of LCF Systems, Inc. dated February 2, 2021 and submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Nitrogen, compressed	2.2	UN1066	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are non-DOT specification composite cylinders described as Nitrogen Receivers. The cylinders are designed and intended for use on the LAU-7 Missile Launcher. Cylinders are manufactured from welded steel liners overwrapped with S-glass filament fiber. Cylinders must be designed and constructed in accordance with Department of the Navy, Naval Air Systems Command Requirements Drawing #58A164A950 and Nitrogen Receiver part number 58A164D863 on file with the Office of Hazardous Materials Safety Approvals and Permits Division. Cylinders must be charged with Nitrogen to no more than 225 psig during transportation. The design operating pressure of the cylinder is 3,800 +100/-0 psig. The cylinders are equipped with pressure relief devices set to relieve at 4,500 psig. The cylinders must be designed to a minimum burst pressure of 6,700 +/- 100 psig.

b. TESTING: Testing of the cylinder design must be in accordance with all requirements of Department of the Navy, Naval Air Systems Command Requirements Drawing #58A164A950. Each cylinder must be subjected to a volumetric expansion pressure test to 5,500 +/- 50 psig in accordance with Requirements drawing #58A164A950.

c. OPERATIONAL CONTROLS: Transportation of these cylinders (Nitrogen Receivers) is authorized to support Military operations only. Transportation is authorized for export only.

February 11, 2021

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. MARKING: The outside of the outer package must be marked "DOT-SP 16035".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

February 11, 2021

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

February 11, 2021

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm.

Photo reproductions and legible reductions of this special permit
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PO: Andrew Eckenrode